



Future Homes Exemplar Plan A

Design Strategy / Architecture with IncluDesign

East / West at grade - Design Intent Plans

DRAWING LIST		
A852	Ground Floor Plan	1 to 100 at A1
A853	First Floor Plan	1 to 100 at A1
A854	Second Floor Plan	1 to 100 at A1
A855	Roof Plan	1 to 100 at A1
A856	Elevation Sheet 1	1 to 100 at A1
A857	Elevation Sheet 2	1 to 100 at A1
A857A	Elevation Sheet 3	1 to 100 at A1
A858	Section Sheet 1	1 to 100 at A1
A859	Section Sheet 2	1 to 100 at A1
A850	External and internal 3D Views	-

DEVELOPMENT SUMMARY	
East/West at Grade Design Intent Plan	
Number of Apartments	13
Apartment Mix	
1 Bed 1 Bath	3
2 Bed 1 Bath + Study	1
2 Bed 1 Bath	1
3 Bed 2 Bath	3
2 Bed 2 Bath Townhouse	5
Total NSA (m2)	1219.9
Total GFA (m2)	1705
Site Coverage	55%
Bicycle Spaces	17
Carparking Spaces	13

THE DEPARTMENT OF ENVIRONMENT, LAND, WATER AND PLANNING TERMS AND CONDITIONS FOR LICENCE OF FUTURE HOMES EXEMPLAR PLANS

- 1 -

- 2 -

- 3 -

- 4 -

- 5 -

Terms of Use

1. The Design Intent Plans

- (a) The Design Intent Plans are drawings which set out basic details of the Exemplar Plans.
- (b) The Design Intent Plans are provided solely for the purpose of the Licensee determining whether the Licensee wishes to acquire a licence to use the Exemplar Plans.
- (c) The Design Intent Plans are not to be used for building or seeking a permit to build.
- (d) Subject to these Terms of Use, the Licensor hereby grants to the Licensee a non-exclusive, royalty free revocable limited licence to reproduce the Design Intent Plans for the sole purpose of determining whether the Licensee wishes to acquire a licence to use the Exemplar Plans.
- (e) The Licensee may provide a reasonable number of copies to its consultants and professional advisers for such purpose.

2. The Guidance Documents

- (a) The Guidance Documents set out the principles for use and adaptation of the Exemplar Plans. Subject to these Terms of Use, the Licensor hereby grants to the Licensee a non-exclusive, royalty free revocable limited licence to reproduce the Guidance Documents solely for:
- (i) determining together with the Design Intent Plans whether the Licensee wishes to acquire a licence to use the Exemplar Plans; and
- (ii) use in conjunction with the Exemplar Plans (if the Licensee obtains a licence to use the Exemplar Plans by payment of the Licence Fee) and solely for obtaining the Purpose.
- (c) The Licensee may provide a reasonable number of copies of the Guidance Documents to its consultants and professional advisers for such purposes.

3. The Exemplar Plans

- (a) Subject to payment of the Licence Fee and to these Terms of Use, the Licensor hereby grants to the Licensee a non-exclusive, royalty bearing, revocable limited licence to reproduce and adapt the Exemplar Plans solely for and limited to the Purpose.
- (b) The use rights licensed under sub-clause 3(b) are limited as follows:
- (i) the licensed rights expire if the Licensee has not submitted a planning application with the Responsible Authority to undertake development at the Site using the Exemplar Plans (as may be adapted hereunder) within 12 months of the later of accepting these Terms Of Use or any substitution of the Site agreed by the Licensor under clause 4(c) (or such longer period as the Licensor may in its discretion approve in writing);
- (ii) the Licensee may make only so many copies of the Exemplar Plans as are reasonably required for the Purpose;
- (iii) the Licensee may adapt the Exemplar Plans for use at the Site in a manner consistent with the Guidance Documents but has no more extensive right of alteration; and
- (iv) the Licensee may sublicense such rights to its builders and other consultants but only to the extent necessary for the obtaining of the Purpose.
- (c) Subject to sub-clause 3(b), the State retains copyright and all other intellectual property rights in the Design Intent Plans, Exemplar Plans and Guidance Documents. The Licensee must not use the Design Intent Plans, Exemplar Plans or Guidance Documents save as expressly authorised under these Terms of Use.
- (d) The Licensee must not assign or licence for reward any right comprised in copyright in the Design Intent Plans, Guidance Documents, Exemplar Plans or any adaptation of the Exemplar Plans.

- (e) The Licensee shall be the owner of the copyright in any adaptation of the Exemplar Plans constituting an original work and created by or on behalf of the Licensee, provided however that:

- (i) the Licensee obtains no rights in relation to the Exemplar Plans other than as are licensed under clause 3(b);
- (ii) the Licensee must only use such adaptation of the Exemplar Plans for the Purpose;
- (iii) there is no further right of adaptation;
- (iv) the Licensee must not license its rights in relation to the adaptation of the Exemplar Plans otherwise than to its builders and other consultants on a royalty free basis and solely for the Purpose;
- (v) the Licensee may not assign, transfer, encumber or otherwise deal with its rights in relation to the adaptation of the Exemplar Plans; and
- (vi) any adaptation of the Exemplar Plans must comply with subclauses 3(f) to 3(h) both inclusive.

- (f) The Licensee must ensure that all adaptations of the Exemplar Plans bear a statement in the following form:

‘adapted from plans licensed by the State of Victoria, all rights in the original plans are reserved. The State of Victoria does not endorse or warrant these plans as adapted. The original terms of licence are available at www.planning.vic.gov.au/policy-and-strategy/futurehomes’.

- (g) The Licensee must not remove or alter any copyright statement, disclaimer or identification information set out on the Design Intent Plans, Guidance Documents or Exemplar Plans (including any adaptation of the Plans).

- (h) The Licensee must not remove or alter on the Design Intent Plans, Guidance Documents or Exemplar Plans (including any adaptation of the Exemplar Plans) any statement constituting a right of attribution of an author, or any insignia or statement identifying a Contributor or identifying the Plans as produced under the Future Homes Project.

- (i) The Licensee must attribute the Future Homes Project in all publicity relating to the Purpose including in any two or three-dimensional representation of the Exemplar Plans. The form of the attribution shall be as reasonably specified by the Licensor from time to time.

- (j) The Licensee hereby grants to the State an irrevocable perpetual royalty free worldwide licence (together with the right of sublicense) to reproduce, publish and communicate any adaptation of the Exemplar Plans made by or on behalf of the Licensee for non-commercial research, education and other public policy purposes. For the purposes of this clause the Licensee must provide the Licensor with a copy of all such adaptations and procure a Moral Rights Release in favour of the Licensor.

4. Site

- (a) The Licensee must nominate a Site within the State of Victoria for use of the Plans.
- (b) The Exemplar Plans may only be used for building at the Site.
- (c) The Licensee may with the prior written consent of the Licensor request one substitution of the Site, provided that the Licensor will not consent to the Site being substituted under this clause 4(c) once the Licensee has submitted a planning application with the Responsible Authority to build on the Site.
- (d) In no case may the Licensee use the Exemplar Plans on more than one site or for the building of more than a single residential apartment development (without paying an additional licence fee and thereby obtaining an additional licence).

5. Licensor warranties

- (a) The Licensor warrants that it is the sole legal and beneficial owner of Copyright in the Design Intent Plans, Guidance Documents and Exemplar Plans and has the right to grant the licences hereby granted under these Terms of Use.
- (b) The warranty in sub-clause 5(a) is subject to any Moral Rights endorsement appearing on the foregoing documents.
- (c) The Licensee must immediately notify the Licensor if it receives any claim that the Licensee's use of the Exemplar Plans (or any other document licensed under these Terms of Use) infringes another person's Intellectual Property, Moral or other rights.

- (d) The Licensee must not institute or defend any legal proceedings in relation to the Exemplar Plans (or any other document licensed under these Terms of Use) without the prior written consent of the Licensor.

6. Victorian Planning Scheme

- (a) The Victorian Planning Provisions may provide a streamlined town planning process in certain municipal planning schemes for residential building developments adapted from the Exemplar Plans.
- (b) It is the sole responsibility of the Licensor to procure that any development proposal based upon the Exemplar Plans (including any adaptation of the Exemplar Plans) will be approved under particular planning scheme requirements or exempted from particular planning scheme requirements.
- (c) The Licensor gives no warranty, express or implied, that any particular development proposal based on the Exemplar Plans (including any adaptation of the Exemplar Plans) will be approved under particular planning scheme requirements.

- (d) The Licensor gives no warranty, express or implied, that a streamlined planning process will be adopted in any particular planning schemes.

- (e) The Licensor may have statutory functions and duties under the PEA (including as a Determining Referral Authority). Nothing in these Terms of Use fetters the discretion of the Department in carrying out its functions and duties and the Department does not enter into these Terms of Use in the course of carrying out any function or duty under the PEA.

7. Acknowledgements & Disclaimers

- (a) The Design Intent Plans, Guidance Documents, Exemplar Plans are provided on an as is basis without warranty of any kind.
- (b) The Exemplar Plans will require adaptation by the Licensee to the Site and to suit the Licensee's purposes.
- (c) The Design Intent Plans, Guidance Documents and Exemplar Plans and all associated material do not constitute professional advice.
- (d) The Exemplar Plans together with the Guidance Documents represent one or more options for achieving a particular energy performance (including NABERS rating) and other environmentally sustainable design (ESD) principles. They do not cover all designs or specifications and energy and ESD performance and outcomes will vary depending on Site, final design, specification and other factors.

- (e) Any representation by the Licensor as to quantities, bills of quantities, or estimated construction costs are provided for guidance and do not constitute representations as to future matters. Quantities and costs may vary considerably depending upon many factors including the Site, final design, specification and other factors.

- (f) The Licensor is not an architect within the meaning of the Architects Act 1991 (Vic) and does not claim or hold itself as offering the services of an architect.

- (g) No communication or representation (in any form) made by or on behalf of the Licensor, its employees and agents whether in respect of Exemplar Plans, Design Intent Plans, Guidance Documents, any adaptation of those created by the Licensee, the Site or town planning requirements shall be taken as or relied upon by the Licensee or any other person as constituting professional advice of any kind.

- (h) It is the sole responsibility of the Licensee to make its own enquiries in relation to and obtain all necessary permits and approvals for any building development proposal based upon the Exemplar Plans.

- (i) It is the sole responsibility of the Licensee to obtain independent professional advice (including but not necessarily limited to architectural advice, engineering advice, town planning advice, construction advice and legal advice) in relation to the above matters and for any proposed building development based upon the Exemplar Plans including any adaptation of the Exemplar Plans and including but not limited to:

- (i) whether the Exemplar Plans and Guidance Documents are suitable for the Licensee's purposes including (but not limited to) development of the Site;

- (ii) specifications for any final design;

- (iii) the energy performance and ESD outcomes of any building development based upon the Exemplar Plans;

- (iv) bills of quantities and construction costs;

- (v) compliance with town planning guidelines

- (vi) compliance with the Building Code of Australia, National Construction Code, the requirements of Fire Rescue Victoria and all other regulatory requirements; and

- (vii) these Terms of Use

8. Licensee warranties

- (a) The Licensee warrants to the Licensor as follows:

- (i) the Licensee has taken professional advice and has determined without reliance on any representation by the Licensor that the Exemplar Plans and Guidance Documents are suitable for the purposes of the Licensee;

- (ii) the Licensee has made its own assessment of the commercial value of the Exemplar Plans and Guidance Documents; and

- (iii) The Licensee has read and understood those Terms of Use and in particular the acknowledgments and disclaimers set out herein and has had an opportunity to obtain independent legal advice in relation to these Terms of Use

9. Limitation of liability

- (a) The Licensor gives no warranty express or implied that the Design Intent Plans, Guidance Documents or Exemplar Plans are fit for the purposes of the Licensee.

- (b) The Licensee uses the Design Intent Plans, Guidance Documents and Exemplar Plans and any associated material solely on its own risk.

- (c) To the maximum extent permitted by law, the Licensee hereby discharges and forever releases the Licensor and the Contributors from and against all claims, costs, damages, expenses and liability howsoever described and arising out of or incidental to the Licensee's use of the Design Intent Plans, Guidance Documents and Exemplar Plans and any associated material, provided however that this release does not apply in relation to a breach of the express Licensor warranties set out in these Terms of Use.

- (d) This clause 9 (Limitation of liability) survives termination of these Terms of Use.

10. General

- (a) These Terms of Use and the licences granted hereunder are personal to the Licensee and may not be assigned, encumbered or otherwise dealt with by the Licensee.

- (b) These Terms of Use constitute the entire agreement between the Licensor and the Licensee with respect to their subject matter and supersede all previous communications, representations, inducements undertakings agreements or arrangements whatsoever.

- (c) Any waiver by the Licensor must be in writing and shall be effective only to the extent expressly set out in such waiver.

- (d) These Terms of Use shall be read and construed according to the laws of the State of Victoria and the parties submit to the exclusive jurisdiction of the courts of that state.

- (e) These Terms of Use may not be varied except in writing signed by both the parties.

- (f) The Licensor may terminate the licences granted under these Terms of Use if the Licensee fails to perform any of its obligations under or otherwise breaches a provision of these Terms of Use and that failure or breach is incapable of remedy, or if capable of remedy, continues for 14 days after the Licensee is given a written notice by the Licensor requiring the breach to be remedied.

- (g) In the event of termination all rights of the Licensee granted under these Terms of Use shall terminate and the Licensee shall forthwith cease to make any use of the Exemplar Plans and Guidance Documents and upon demand deliver up to the Licensor all copies of such material in the Licensee's possession custody or control.

- (h) These Terms of Use may be executed in counterparts. All executed counterparts are taken to constitute one document.

- (i) These Terms of Use may be executed by any authorised by:

- (i) In the case of a corporation, the Corporations Act 2001; and

- (ii) the Electronic Transactions (Victoria) Act 2000

11. Definitions and Interpretation

- (a) In these Terms of Use:

- (i) headings shall not affect interpretation;

- (ii) a reference to the specific does not limit the general;

- (iii) a reference to a person includes a reference to a natural person, company, partnership and joint venture.

- (b) The following terms have the following meanings:-

- (i) **Contributors** means the persons who contributed to the development of the Plans and Guidance Documents;

- (ii) **Design Intent Plans** means the conceptual drawings setting out basic details of the Exemplar Plans and published by the Licensor through the Website;

- (iii) **Department** means the Department of Environment, Land, Water, and Planning ABN 90 719 052 204;

- (iv) **Determining Referral Authority** has the meaning given to that term by the PEA;

- (v) **Exemplar Plans** means the exemplar building plans & specifications developed under the Future Homes Project for a residential apartment building and made available to by the Licensor to the Licensee subject to these Terms of Use;

- (vi) **Future Homes Project** means the project conducted by the Licensor for the production of exemplar residential apartment designs and an associated streamlined planning process;

- (vii) **Guidance Documents** means the principle and adaptation guidance documents for the Exemplar Plans published by the Licensor from time to time and further described in the Schedule.

- (viii) **Intellectual Property Rights** means statutory and other proprietary rights in respect of trademarks, patents, circuit layouts, copyrights, confidential information and all other intellectual property rights as defined in Article 2 of the Convention establishing the World Intellectual Property Organization of July 1967, as amended.

- (ix) **Licence Fee** means the licence fee set out in the Schedule;

- (x) **Licensee** means the person identified in the schedule;

- (xi) **Licensor** means the State of Victoria through the Department;

- (xii) **Moral Rights Release** means a release by the author of their moral rights being the suite of rights conferred on a creator of copyright works by part IX of the Copyright Act 1968 or any analogous rights in respect of any other jurisdiction and Moral Rights has a concomitant meaning;

- (xiii) **PEA** means the Planning and Environment Act 1987;

- (xiv) **Purpose** means the purpose of building residential apartments using the Exemplar Plans (and as may be adapted under these Terms of Use) at the Site;

- (xv) **Site** means the site for the use of the Exemplar Plans nominated by the Licensee and identified in the Schedule and must be a Site within the State of Victoria and

- (xvi) **Victorian Planning Provisions** means the Victoria Planning Provisions approved under part 1A of the PEA and as amended from time to time;

- (xvii) **Website** means the website operated by or on behalf of the Licensor at URL <https://www.planning.vic.gov.au/policy-and-strategy/future-homes>

OFFICIAL

OFFICIAL

OFFICIAL

OFFICIAL

OFFICIAL

IMPORTANT INSTRUCTIONS FOR ADAPTATION:

As required by the Terms of Use (see above), the following items must be reproduced on any adaptation of this Exemplar Design:

1. Legal disclaimer (see disclaimer at the bottom of this page)
2. Victorian State Government logo
3. Reference the Future Homes project (this can be done through the Future Homes wordmark)
4. Reference to which exemplar design has been selected
5. Insertion of the following statement on your adaptation plans:

“adapted from plans licensed by the State of Victoria, all rights in the original plans are reserved. The State of Victoria does not endorse or warrant these plans as adapted. The original terms of licence are available at: <https://www.planning.vic.gov.au/policy-and-strategy/future-homes>”

An electronic folder containing both a PDF and an .ai file of these items has been shared with you in the same folder as the exemplar design.

Disclaimer: These Design Intent plans are an indicative representation of the Future Homes Project and show an architectural approach, layouts, measurements and levels. They are intended only to permit whether the Exemplar Plans may be right for your project. These design intent plans are designed to be used in Victoria, and are not intended to be used to undertake building works or to seek planning permission. These plans are provided subject to the Terms of use, which are provided on the title page and available for download at www.planning.vic.gov.au/policy-and-strategy/future-homes. Copyright the State of Victoria, 2021. All rights reserved.



Project
Future Homes Exemplar Project
Client
Victorian Government

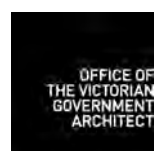
Drawing Name
Terms of Use
Date
31/08/2022
Status
For Information

Drawing Number

Scale

Revision
P1

Disclaimer: These Design Intent plans are an indicative representation of the Future Homes Project and show an architectural approach, layouts, measurements and levels. They are intended only to permit whether the Exemplar Plans may be right for your project. These design intent plans are designed to be used in Victoria, and are not intended to be used to undertake building works or to seek planning permission. These plans are provided subject to the Terms of use, which are provided on the title page and available for download at www.planning.vic.gov.au/policy-and-strategy/future-homes. Copyright the State of Victoria, 2021. All rights reserved.

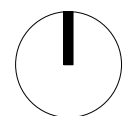


FUTURE HOMES

Project
Future Homes
Client
Victoria Government
Exemplar
Exemplar Plan A – East / West at Grade

Drawing
Overall Ground Floor Plan
Date
31/08/2022
Status
Design Development

Drawing No.
A852
Scale: @ A1
1 : 100
Revision
P1



Disclaimer: These Design Intent plans are an indicative representation of the Future Homes Project and show an architectural approach, layouts, measurements and levels. They are intended only to permit whether the Exemplar Plans may be right for your project. These design intent plans are designed to be used in Victoria, and are not intended to be used to undertake building works or to seek planning permission. These plans are provided subject to the Terms of use, which are provided on the title page and available for download at www.planning.vic.gov.au/policy-and-strategy/future-homes. Copyright the State of Victoria, 2021. All rights reserved.

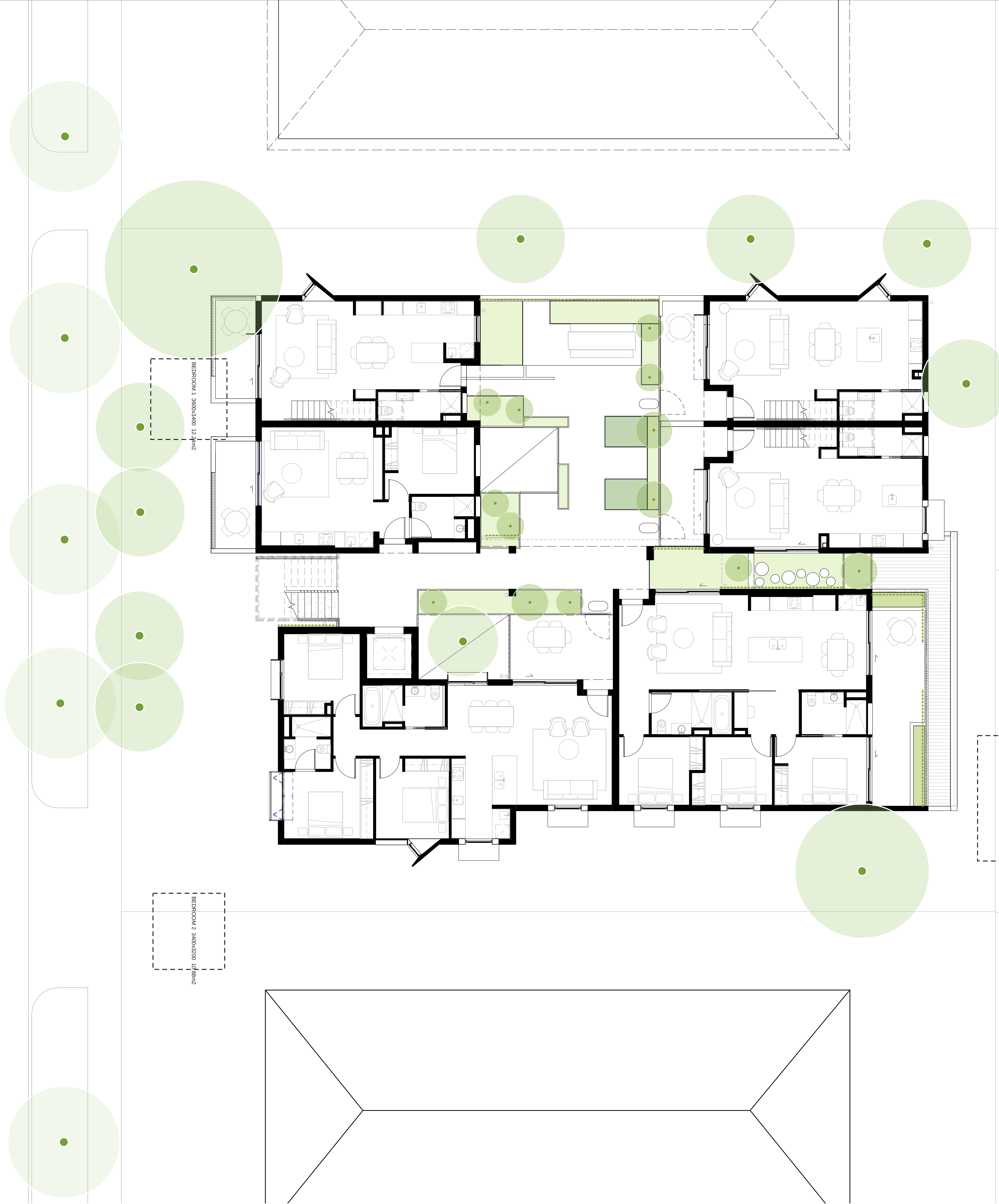
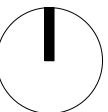


FUTURE HOMES

Project
Future Homes
Client
Victoria Government
Exemplar
Exemplar Plan A – East / West at Grade

Drawing
Overall First Floor Plan
Date
31/08/2022
Status
Design Development

Drawing No.
A853
Scale: @ A1
1 : 100
Revision
P1



Disclaimer: These Design Intent plans are an indicative representation of the Future Homes Project and show an architectural approach, layouts, measurements and levels. They are intended only to permit whether the Exemplar Plans may be right for your project. These design intent plans are designed to be used in Victoria, and are not intended to be used to undertake building works or to seek planning permission. These plans are provided subject to the Terms of use, which are provided on the title page and available for download at www.planning.vic.gov.au/policy-and-strategy/future-homes. Copyright the State of Victoria, 2021. All rights reserved.

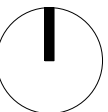


FUTURE HOMES

Project
Future Homes
Client
Victoria Government
Exemplar
Exemplar Plan A – East / West at Grade

Drawing
Overall Second Floor Plan
Date
31/08/2022
Status
Design Development

Drawing No.
A854
Scale: @ A1
1 : 100
Revision
P1



Disclaimer: These Design Intent plans are an indicative representation of the Future Homes Project and show an architectural approach, layouts, measurements and levels. They are intended only to permit whether the Exemplar Plans may be right for your project. These design intent plans are designed to be used in Victoria, and are not intended to be used to undertake building works or to seek planning permission. These plans are provided subject to the Terms of use, which are provided on the title page and available for download at www.planning.vic.gov.au/policy-and-strategy/future-homes. Copyright the State of Victoria, 2021. All rights reserved.

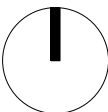


FUTURE HOMES

Project
Future Homes
Client
Victoria Government
Exemplar
Exemplar Plan A – East / West at Grade

Drawing
Overall Roof Floor Plan
Date
31/08/2022
Status
Design Development

Drawing No.
A855
Scale: @ A1
1 : 100
Revision
P1





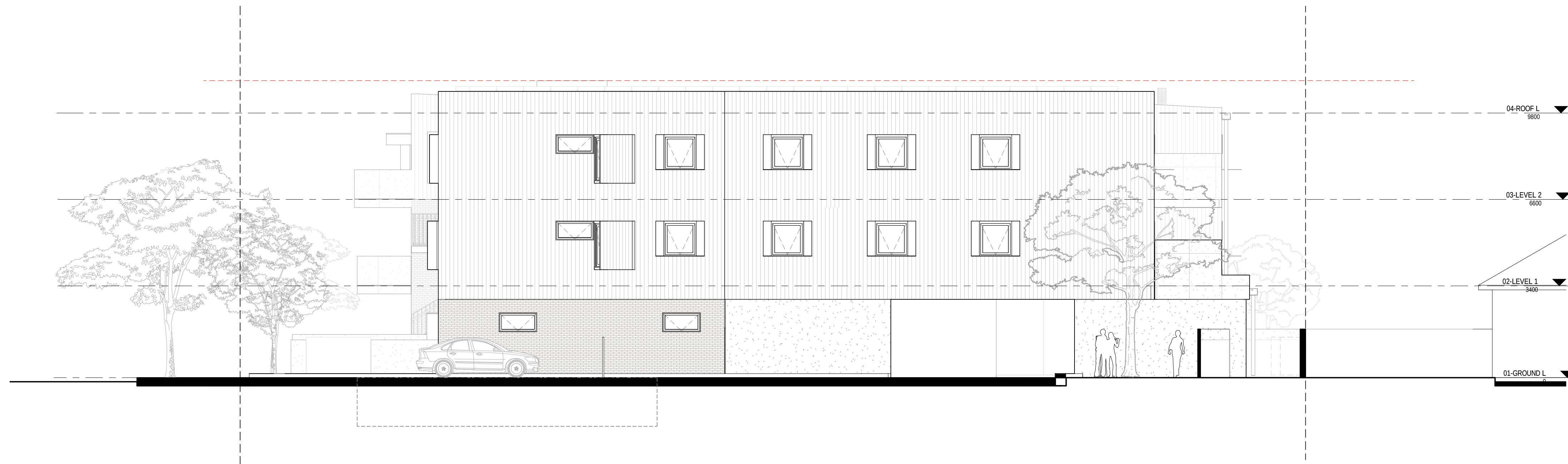
1 East Elevation
1 : 100



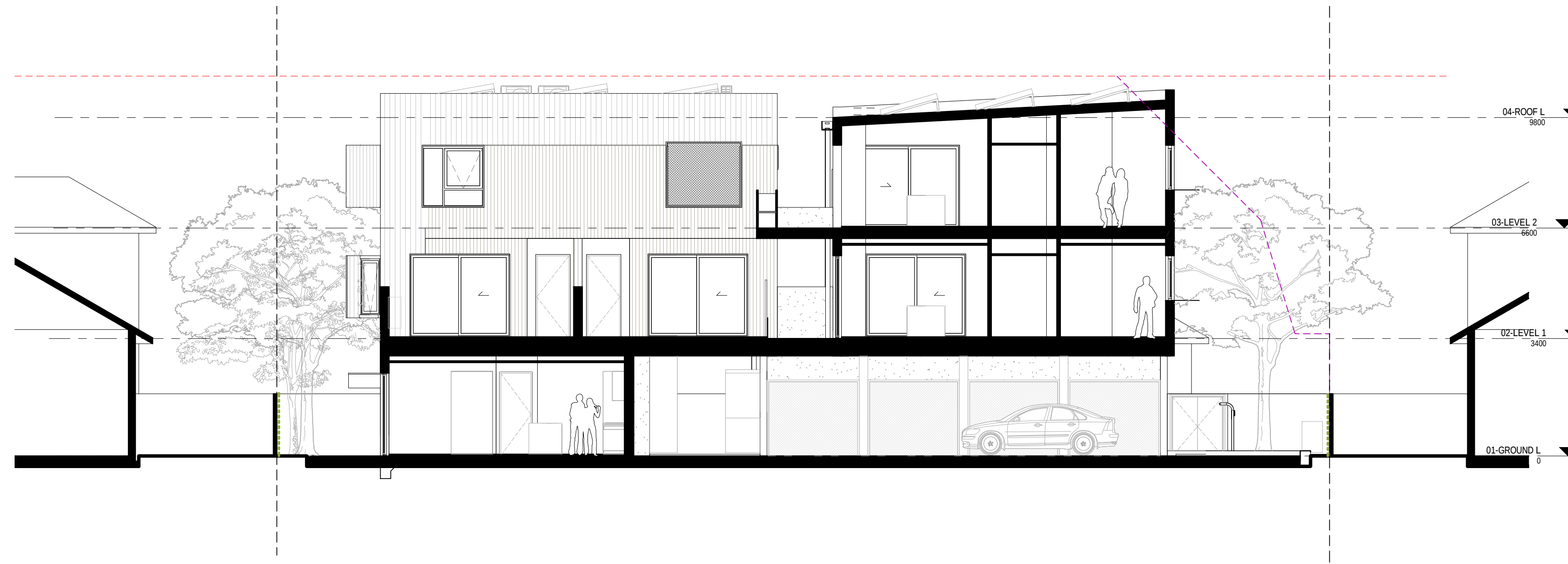
2 West Elevation
1 : 100



1 North Elevation
1 : 100



2 South Elevation
1 : 100



1 Int. East Elevation
1 : 100



2 Int. West Elevation
1 : 100

Disclaimer: These Design Intent plans are an indicative representation of the Future Homes Project and show an architectural approach, layouts, measurements and levels. They are intended only to permit whether the Exemplar Plans may be right for your project. These design intent plans are designed to be used in Victoria, and are not intended to be used to undertake building works or to seek planning permission. These plans are provided subject to the Terms of use, which are provided on the title page and available for download at www.planning.vic.gov.au/policy-and-strategy/future-homes. Copyright the State of Victoria, 2021. All rights reserved.

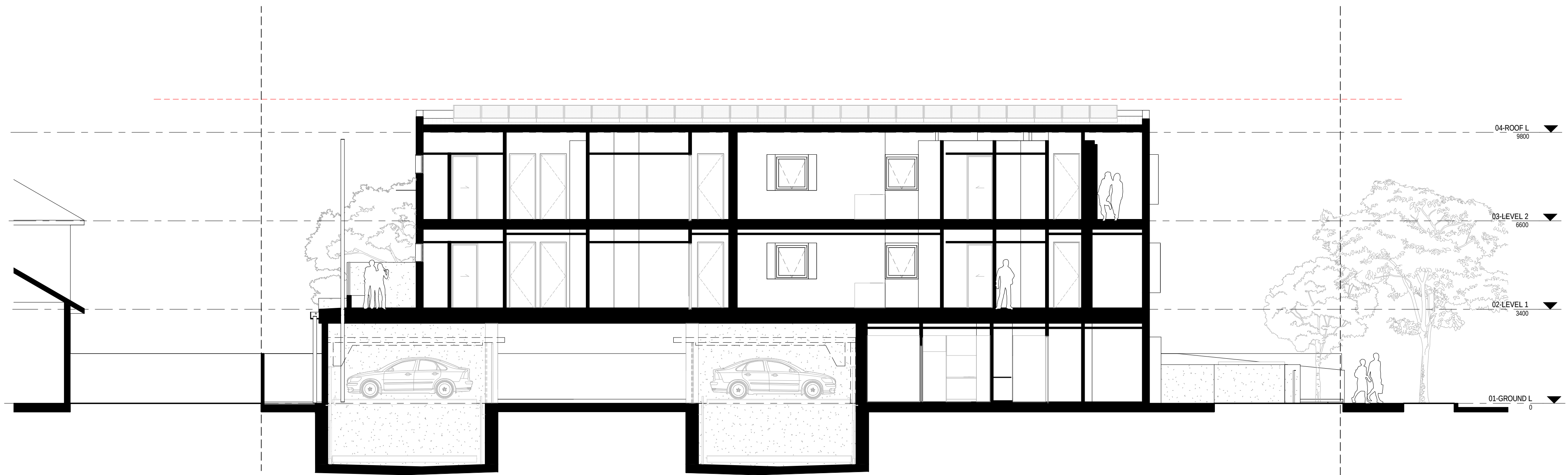


FUTURE HOMES

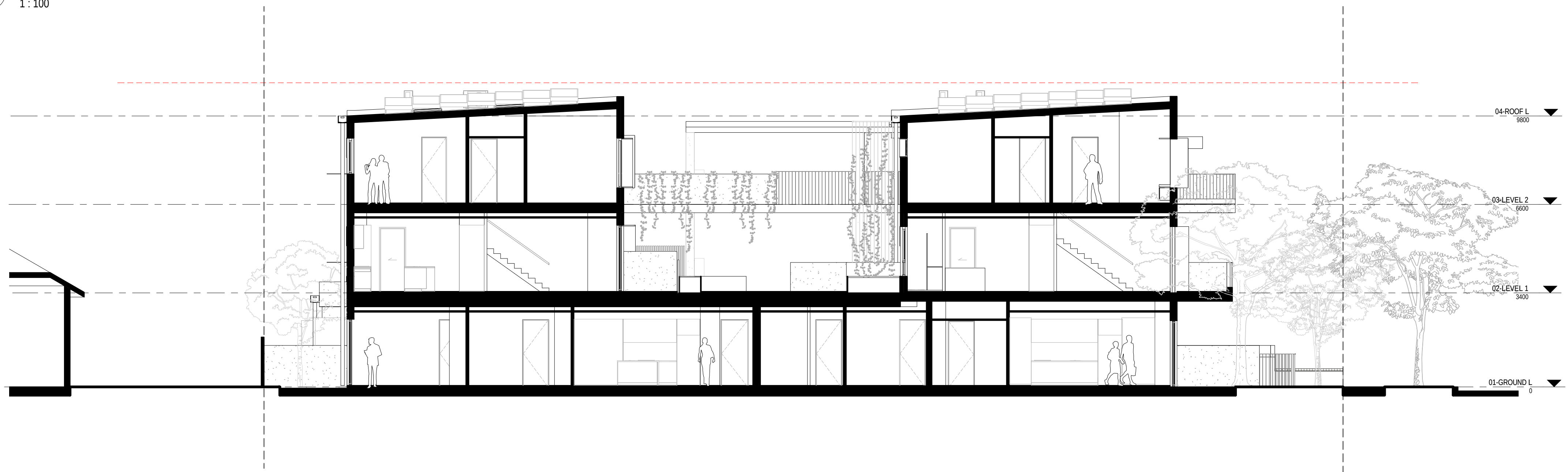
Project
Future Homes
Client
Victoria Government
Exemplar
Exemplar Plan A – East / West at Grade

Drawing
Overall Elevation
Date
31/08/2022
Status
Design Development

Drawing No.
A857a
Scale: @ A1
1 : 100
Revision
P1



1 Long Section 1
1 : 100



2 Long Section 2
1 : 100

Disclaimer: These Design Intent plans are an indicative representation of the Future Homes Project and show an architectural approach, layouts, measurements and levels. They are intended only to permit whether the Exemplar Plans may be right for your project. These design intent plans are designed to be used in Victoria, and are not intended to be used to undertake building works or to seek planning permission. These plans are provided subject to the Terms of use, which are provided on the title page and available for download at www.planning.vic.gov.au/policy-and-strategy/future-homes. Copyright the State of Victoria, 2021. All rights reserved.

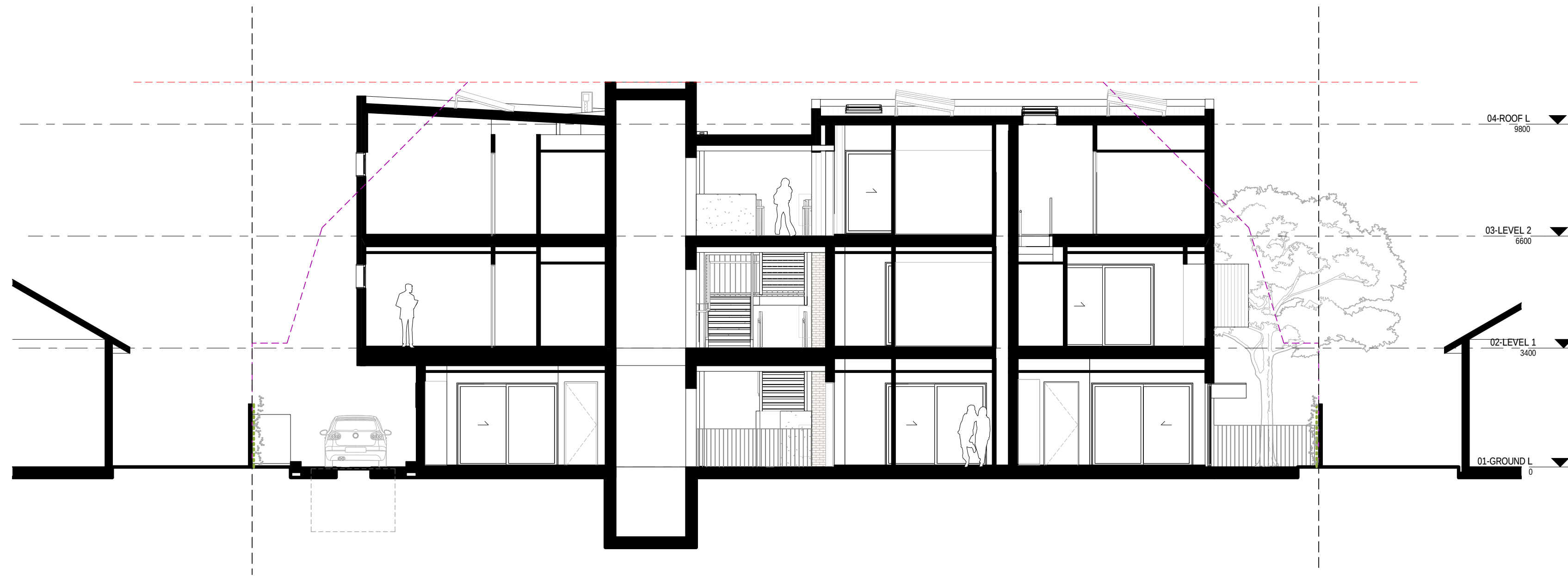


FUTURE
HOMES

Project
Future Homes
Client
Victoria Government
Exemplar
Exemplar Plan A – East / West at Grade

Drawing
Overall Sections
Date
31/08/2022
Status
Design Development

Drawing No.
A858
Scale: @ A1
1 : 100
Revision
P1



1 Cross Section
1 : 100



Streetview
Refer to **Exemplar A North/South at Grade** for additional 3D Indicative Images



Ground Level Lobby



Interior View

Disclaimer: These Design Intent plans are an indicative representation of the Future Homes Project and show an architectural approach, layouts, measurements and levels. They are intended only to permit whether the Exemplar Plans may be right for your project. These design intent plans are designed to be used in Victoria, and are not intended to be used to undertake building works or to seek planning permission. These plans are provided subject to the Terms of use, which are provided on the title page and available for download at www.planning.vic.gov.au/policy-and-strategy/future-homes. Copyright the State of Victoria, 2021. All rights reserved.



FUTURE HOMES

Project
Future Homes
Client
Victoria Government
Exemplar
Exemplar Plan A – East / West at Grade

Drawing
3D Views
Date
31/08/2022
Status
Design Development

Drawing No.
A850
Scale: @ A1
Revision
P1